

JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl.Appeal No. 415-J of 2006
(Maqsood Ahmad v. The State etc.)

Date of hearing: 16-03-2015

Appellant by: Mr.Maqbool Ahmad Qureshi advocate
for the appellant at State expenses.

Complainant by: -

State by: Mr.Khurram Khan, DPG.

SADAQAT ALI KHAN, J.:- The instant Criminal appeal has been filed by Maqsood Ahmad present appellant/convict against judgment dated 12.2.2005 passed by learned Special Judge Anti-Terrorism Court Faisalabad, according to which, Maqsood Ahmad present appellant was convicted and sentenced as under:-

Maqsood Ahmad was convicted u/s 302(b) of PPC and sentenced to undergo rigorous imprisonment for life as Ta'zir". In addition thereto the accused shall also be liable to pay compensation of Rs.1,00,000/- to the legal heirs of the deceased Muhammad Saeed constable as required u/s 544-A Cr.P.C and in default to pay the fine the accused shall undergo six month S.I.

He was convicted u/s 324 PPC and sentenced to undergo imprisonment for five years R.I. He shall be liable to pay fine of Rs.20,000/- and in default to pay the fine the accused shall undergo six month S.I.

He was convicted u/s 353 PPC and sentenced to undergo imprisonment for two years R.I.

He was convicted u/s 148/149 PPC and sentenced to undergo imprisonment for three years R.I.

He was convicted u/s 7(a) Anti-Terrorism Act, 1997 and sentenced to undergo imprisonment for life. He shall be liable to pay fine of Rs.50,000/- and in default to pay the fine the accused shall undergo one year S.I.

All the sentences awarded to him shall run CONCURRENTLY. He shall be given the benefit of Section 382-B Cr.P.C

in case FIR No.87 dated 18.3.2000, u/s 302/324/353/148/149, 13/XX/65 (A.O) & 7 Anti-Terrorism Act, 1997 P.S Satiana, Faisalabad.

2. The brief facts of the case have been given by Muhammad Khalid Inspector PW15 complainant in his statement made by him before the Trial Court, same statement is hereby reproduced for narration of the facts:-

“On 18.3.2000 I was posted as Inspector/SHO P.S Jaranwala. On the same day, I was present in Chak No.355 in connection with the investigation of case No.217 dated 17.3.2000 u/s 302/324 etc. and received a spy information that accused Muhammad Aslam, Ghulam Murtaza alias Murti, Shami and Tariq alias Dona, Umer Hayat and Maqsood present in court are present in near Pul Sokay within the area of chak No.377 and they are required in different cases of heinous nature of murder and dacoity etc. and they can be arrested if immediate raid is conducted. I made this information to the DSP on wireless and at this SHO, Lundianwala, SHO Satiana, Incharge of the police posts Rodala Road, Jusana, Jhoke Ditta all came at Sokay Pul at the direction of the DSP and I also reached along with my police contingent at the said pull and the DSP Jaranwala also came there on official vehicle. Muhammad Farooq DSP Tandlianwala, and Muhammad Riaz SHO P.S Bahalak also came there. At the direction of the DSP, the accused persons were encircled by the police party and the accused persons had hidden themselves in the crop. At this the accused persons started firing at the police party and the police party in self defence made firing upon the accused. Due to the firing of the accused persons m Saeed constable was murdered at the spot on who sustain fire shot at his chest which went through and through. Firing contained for a considerable time and after stopping of the firing, from all accused the area was searched and found the accused fallen in an injured condition and they were got raised by the police and accused Muhammad Aslam was found in Kalashnikov in right hand with a bag containing 80 bullets. Similarly, a Kalashnikov with a bag containing 70 bullets were found with the accused Ghulam Murtaza. Both the accused persons had expired at the spot. The recovered weapons were taken into possession by me vide recovery memo Exh.PU and Exh.PW attested by Khada Bux S.I and Ghulam Muhammad S.I/SHO. The remaining accused persons Maqsood, Unar Hayat, Shama and Tariq managed to escape by taking advantage of crops. The accused persons committed the offence of murder, attempt to commit murder and created terrorism by their above mentioned act and I accordingly drafted complaint Exh.PK and sent the same for registration of the case at P.S Satiana.

3. *After registration of the case, investigation started and on completion of the same, report u/s 173 Cr.P.C was submitted in the Trial Court and learned Trial Court after observing legal formalities provided in the Cr.P.C framed the charge against the present appellant Maqsood Ahmad on 25.11.2004, to which, he pleaded not guilty and prosecution evidence was summoned.*

4. *Prosecution produced Dr. Muhammad Akram Shahid PW-1, Muhammad Riaz Umer ASI PW-2, Saifullah Patwari PW-3, Muhammad Ashraf 631/C PW-4, Basharat Ali 908/C PW5, Habibullah S.I PW6, Safarish Hussain inspector PW7, Mushtaq PW8, Noor Muhammad 7311/C PW9, Nazar Hussain ASI PW10, Khuda Bukhsh S.I PW11, Muhammad Yar ASI PW12, Muhammad Ashraf 1272/C PW13, Shamsheer Ali 4210/C PW14, Muhammad Khalid Inspector (complainant) PW15, Muhammad Younas S.I PW16, whereas, PWs namely Dr.Rana*

Muhammad Saeed, Dr. Mukhtar Ahmad Randhawa, Muhammad Saleem, Manzoor Khan S.I, Ghulam Rasool S.I, Muhammad Aslam ASI, Muhammad Ashraf ASI, Muhammad Malik 1431/C, Muhammad Aslam 2861/C, Muhammad Ishiaq 6877/PC, Muhammad Sadiq 6374/PC, Maqsood Ahmad 2199/C, Abdul Hameed, 6550/PC, Zahoor Ahmad 6574/PC, Muhammad Arif 2919/H.C, Muaazam Ali 3793/C and Muhammad Shafi 6824/C were given up by the prosecution being unnecessary and after tendering documentary evidence i.e. reports of chemical examiner and Radiologist Exh.PEE, Exh.PFF respectively closed the prosecution evidence.

5. Medical evidence was furnished by Dr. Muhammad Akram PW-1 who stated as under: -

“Stated that on 18.3.2000, I was posted as District Surgeon and Member Standing Medical Board, DHQ Hospital, Faisalabad. On the said date, the standing medical board performed post-mortem examination on the dead body of **Saeed Ahmad** Constable No.6492/C s/o Abdul Rashid, caste Arain aged 27 years r/o Chak No.22/G.B, P.S Satiana, District Faisalabad. The other members of the board were Dr. Ahmad Saeed, Head of Forensic Department, PMC and Dr. Mukhtar Ahmad Randhawa, MS, DHQ Hospital, Faisalabad as Chairman of the Board. The dead body was brought by Waqar Hussain S.I, P.S Jaranwala and identified by Noor Ahmad constable No.7311/C P.S Jaranwala and Waqar Hussain S.I P.S Jaranwala.

EXTERNAL APPEARANCE.

The dead body was of an adult male of average physique appeared to be of stated age. Face was pale. Faint post-mortem stained were present on the back. The deceased was dressed in police uniform, blue shirt, Khakhi Pant, white bunyan and grayish colour underwear. Clothes were blood stained and holes were present on the clothes. Clothes signed and hand over to police.

Injuries.

- 1(a) firearm wound of entry 0.5 cm x 0.5 cm on the left side of front of chest. One cm from mid line. 19-cm from supra-sternal notch.
- 1(b) firearm wound of exit 5 x 4 cm on the back of right side of chest 15-cm from mid line, 17 cm below inferior angle of scapular.

CRANIUM AND SPINAL CORD.

Scalp, skull and vertebrae, healthy. Skull was not opened.

THORAX.

There was fracture of 8th and 9th ribs on the right side of the back. Chest cavity contain 500 civil court of blood. Lower lobe of right lung was shattered. Rest of the viscerae were healthy.

ABDOMEN

Abdominal cavity contained 300 civil court of blood. Diaphragm was damaged on right side. Stomach was full of semi-digested fluid diet, liver was shattered. Rest of viscera in the abdominal cavity were healthy.

OPINION OF THE STANDING MEDICAL BOARD.

Death occurred in this case due to hemorrhagic shock as a result of injury No.1 caused by firearm. Injury No.1 is sufficient to cause death in ordinary course of nature. Death

occurred within few minutes. The time between death and pm was 6 to 24 hours.

On 20.3.2000, I was posted as District Surgeon and Member Standing Medical Board, DHQ Hospital, Faisalabad. On the said date, the standing medical board performed post-mortem examination on the dead body of **Ghulam Murtaza alias Murti** s/o Mehram caste Sambhal, aged 28/29 years r/o Chak No.355/G.B, P.S Jaranwala, District Faisalabad. The other members of the board were Dr. Ahmad Saeed, Head of Forensic Department, PMC and Dr. Mukhtar Ahmad Randhawa, MS, DHQ Hospital, Faisalabad as Chairman of the Board. The dead body was brought by police and identified by Muhammad Suleman s/o Zakir, caste Kharal, and Mushtaq Ahmad s/o Dilber Khan caste Kharal r/o Chak No.355/GB P.S Satiana, District Faisalabad.

EXTERNAL APPEARANCE.

The dead body was of an adult male of average physique appeared to be of stated age. Face was pale. Post-mortem stains were present on the back. Rigor mortis was present. The deceased was dressed in light brown colour Shalwar Qameez, white Bunian. Clothes were blood stained and holes were present on the clothes.

Injuries.

- 1(a) firearm wound of entry 4 cm x 2 cm on the right side of forehead 3 cm above the eyebrow. 6 cm from mid-line, the underline bone was fractured.
- 1(b) firearm wound of exit 12 x 4 cm on the right side of face just in front of right ear, underline bone was fractured and brain matter was coming out.
- 2(a) firearm wound of entry 4 x 3 cm on the middle of right clavicle.
- 3(a) firearm wound of entry 1 x 1 cm on the front of right shoulder, 6-cm from top of the shoulder.
- 2&3(b) firearm wound of exit 28 x 9 cm on the outer aspect of right chest, 2 cm below roof of right axilla.
4. firearm gutter wound front of right forearm 6 x 2 cm almost in the middle with area of abrasion present around the wound.
- 5(a) firearm wound of entry 1 x 1 cm on the abdomen 1 cm right to umbilicus.
- 5(b) firearm wound of exit 10 x 8 cm on the outer aspect of right side of abdomen at the level of ilac crest, under line bone was fractured.
- 6(a) firearm wound of entry .5 x .5 cm on outer aspect of root of left thumb.
- 6(b) firearm wound of exit wound 1 x .5 cm in the first web space of left hand.

CRANIUM AND SPINAL CORD.

Right side of the skull was shattered and brain was damaged.

THORAX.

All the viscerae in the thorax were healthy.

ABDOMEN

Stomach contained 5 oz of blood stained fluid. All the viscerae in the abdomen were healthy.

OPINION OF THE STANDING MEDICAL BOARD.

Death occurred in this case due to vital organs as a result of injury No.1 added by haemorrhagic shock. All the injuries were ante mortem and due to firearm. Death occurred immediately. The time between death and post-mortem examination was 24 to 48 hours.

On 20.3.2000, I was posted as District Surgeon and Member Standing Medical Board, DHQ Hospital, Faisalabad. On the said date, the Standing Medical Board performed post-mortem examination on the dead body of **Muhammad Aslam** s/o Mehram, caste Sambhal aged 30 years r/o Chak No.355/G.B, P.S Jaranwala, District Faisalabad. The other

members of the board were Dr. Ahmad Saeed, Head of Forensic Department, PMC and Dr. Mukhtar Ahmad Randhawa, MS, DHQ Hospital, Faisalabad as Chairman of the Board. The dead body was brought by police and identified by Muhammad Saleem s/o Zakir and Mushtaq Ahmad s/o Dilber Khan r/o Chak No.355/G.B Jaranwala District Faisalabad.

EXTERNAL APPEARANCE.

The dead body was of an adult male of average physique appeared to be of stated age. Face was pale. Post-mortem stained were present on the back. Rigor mortis was present. The deceased was dressed light brown colour Shalwar Qameez, red colour dharidar bunian. Clothes were blood stained with corresponding holes on the clothes. Tawviz in the neck, ring in right hand ring figure.

Injuries.

- 1(a) firearm wound of entry 1 cm x 1 cm on the left chest 9 cm from mid line at level of inferior angle of scapula.
- 1(b) firearm wound of exit 7 x 3 front of upper part of left arm just above left axillary roof.
- 2(a) firearm wound of entry outer aspect of right side of abdomen measuring 2 x 1 cm in mid-axillary line 6 cm above right iliac crest.
- 2(b) firearm wound of exit 3 x 2 on the back of right side of chest, 2 cm from midline, 8 cm below inferior angle of right scapula.
- 3((a) firearm wound of exit 1 x 1 cm front of upper part of left arm, 12 cm above elbow. The exit being as 1(b).
- 4(a) firearm entry wound 7 x 6 cm in left cubital fossa.
- 4(b) firearm wound of exit 3 x 1 cm back of upper 1/3rd of left forearm, under line bone fractured.
5. firearm gutter wound 3 x 1 cm back of left shoulder.
6. firearm gutter wound 7 x 5 cm outer aspect of left chest, 20-cm below axilla.
7. firearm gutter wound just in front of injury No.6, measuring 4 x 2 cm.
8. firearm gutter wound 6 x 2 cm just below injury No.6.
9. firearm gutter wound 7 x 3 cm just below injury No.8
- 10(a) firearm entry wound outer aspect of left buttock measuring 2 x 1 cm.
- 10(b) firearm exit wound 3 x 2 cm about 4 cm below injury No.9
- 11(a) firearm entry wound .5 x .5 cm inner aspect of left arm. 6 cm above elbow. The exit wound being 4 (b)
- 12(a) firearm wound of entry measuring .5 x .5 cm back of left buttock at level of gluteal fold.
- 12(b) firearm exit wound 3 x 2 cm on front of upper part of left thigh, 28 cm above patella.
- 13(a) firearm wound of entry 1 x .5 cm on left buttock, 13-cm from midline 8-cm above gluteal fold.
- 14(a) firearm wound of entry 1 x .5 cm on left buttock 5-cm from midline, 10 cm above gluteal fold.
- 15(b) firearm exit wound at level of pubic symphysis measuring 13 x 10 cm with fracture of pubic symphysis. 15(b) is the combined exit wound of injuries No.13(a), 14(a) & 15(a).
16. firearm gutter wound inner aspect of left leg 2 x 2 cm about 11 cm from medial malleolus.
- 17 firearm gutter wound 3 x 1 cm front of left leg just above ankle joint.
- 18(a) firearm wound of entry .5 x .5 cm on the back of right thigh, 13 cm above popliteal fossa.
- 19(a) firearm wound of entry inner aspect of right thigh measuring 2 x 1-cm about 9 cm above knee joint.
- 20(a) firearm exit wound of entry 2 x 2 inner aspect of right thigh, 15 cm above knee joint.
- 20(b) firearm exit wound 11 x 9 cm middle of front of right thigh 20(b) is the combined exit wound of injuries No.1(a), 19(a) & 20(a).

21. Abrasion 6 x 7 cm middle of inner aspect of left thigh.
22. two abrasions, each measuring 2 x 2 cm on right side of abdomen, 6 cm from umbilicus.
23. Abrasion 2 x .5 cm in front of tragus of left ear.

CRANIUM AND SPINAL CORD.

Not opened.

THORAX.

8th, 9th, 10th 11th ribs fractured on right side and 4,5,6 ribs on left side. Both pleural cavities contained blood. Both lungs shattered. Rest of viscerae in thorax were healthy..

ABDOMEN

There was blood in the peritoneal cavity. There were multiple perforation in small and large intestine. Stomach contained 2 oz of fluid and was healthy. Bladder contained 2 oz of urine and was healthy. Rest of the viscerae of abdomen were also healthy.

OPINION OF THE STANDING MEDICAL BOARD.

Death occurred in this case due to hemorrhagic shock as a result of injury No.1 and 2 and added by other injuries. All the injuries were ante mortem. Death occurred immediately. The time between death and post-mortem was between 24 to 48 hours and between injury and death was immediate.”

6. On the other hand, statement of present appellant Maqsood Ahmad was recorded under section 342 Cr.P.C who refuted the allegations so leveled against him and has opted not to appear under section 340(2) Cr.P.C and also did not produce any defence evidence and in reply to question “why this case against you and why the PWs deposed against you?” the appellant replied as under:-

“It is a false case. I am a permanent resident of Sheikupura district and have no business or other connection in Faisalabad. None of the PWs have seen or met me before the registration of this case. All the PWs of this case are police officials except the PWs of identification of the dead bodies of Muhammad Aslam and Ghulam Murtaza deceased. Since I had enmity with Kharal Bradary of my village. The Kharal Bradary of my village at Sheikupura is inimical towards me. Shakeel Ahmad s/o Muhammad Aslam also belongs to the Kharal Bradary of my village. He is close relative of my enemies. A false case was registered against me on the complaint of Shakeel Ahmad s/o Muhammad Aslam, caste Kharal, r/o Chak No.355/GB vide FIR No.217/2000, dated 17.3.200 P.S Jaranwala. Shakeel Ahmad had maneuvered to involve me in the above mentioned case falsely on the asking of my enemies along with other co-accused. The other co-accused of the above mentioned case are real brother inter-se. the motive of case FIR No.217/2000, P.S Jaranwala which was registered one day prior to the registration of this case, was personal enmity between the Shakeel Ahmad, the complainant of case FIR No.217/2000, P.S Jaranwala and Muhammad Aslam, Ghulam Murtaza, Umar Hayat alias Umre, Shama alias Shame, Tariq alias Dona sons of Mahram, caste Sambhal, r/o Chak No.355/GB, P.S Jaranwala who are brothers inter-se. Brother of Muhammad Aslam etc. was murdered by Shakeel Ahmad etc. 4/5 yeasers back to the above mentioned case. I have no concern the motive of the above mentioned case. On the next day of registration of case FIR No.217/2000 P.S Jaranwala, a police constable Muhammad Saeed of P.S Jaranwala was murdered by unknown persons in the territorial jurisdiction of P.S

Satiana. In order to take revenge and show progress in the murder of Muhammad Saeed constable, the police took Muhammad Aslam and Ghulam Murtaza to the alleged place of occurrence and killed them in a fake encounter who were already in the police custody. The complainant of this case Muhammad Khalid, inspector/SHO P.S Jaranwala had involved me in this case falsely in connivance with Shakeel Ahmad and my enemies. I have no relationship with any of my co-accused. Previously, neither I was involved in any criminal case nor I had whatsoever any connection with any dacoity case. I submit certified copy of case No.217/2000, dated 17.3.2000 P.S Jaranwala in my defence.”

7. *After conclusion of the trial, learned trial court convicted the present appellant Maqsood Ahmad with above stated sentences. Hence this appeal.*

8. *Learned counsel for the appellant contended that:-*

- (i) the judgment of the trial court dated 12.2.2005 is against law and facts on the file and is liable to be set-aside.*
- (ii) that the prosecution has failed to prove its case against the present appellant as there are many major discrepancies in the statements of the PWs and the learned trial court has convicted the appellant on the basis of surmises and conjectures;*
- (iii) it is contended that the impugned judgment of the trial court is not maintainable in the eyes of law;*
- (iv) lastly submitted that appeal may be accepted and the judgment of the trial court dated 12.2.2005 may kindly be set aside and appellant may be acquitted.*

9. *On the other hand, learned DPG has vehemently opposed the appeal and submitted that: -*

- (i) the prosecution has proved its case beyond any shadow of doubt against the appellant with solid evidence and prayed for the dismissal of the present appeal.*

10. *We have heard the learned counsel for the parties and perused the record.*

11. *The detail of prosecution case has already been mentioned in paragraph No.2 of this judgment, therefore, there is no need to repeat the same to avoid the repetition and*

duplication. Complainant of this case is Muhammad Khalid Inspector PW15 and the deceased of this case is Muhammad Saeed constable. According to the prosecution story, Muhammad Aslam and Murtaza accused (both real brothers inter-se) were also died at the spot during the occurrence in police encounter. The occurrence took place on 18.3.2000, whereas, FIR Exh.PK/1 was registered on 18.3.2000 at 4.45-pm, but time of occurrence is neither mentioned in the FIR Exh.PK/1 nor in the complaint Exh.PK, however, time of recording of the complaint Exh.PK is mentioned as 3.45-PM at the bottom of the complaint Exh.PK. Place of occurrence is land of Muhammad Anwar, where wheat crop was cultivated. Muhammad Khalid Inspector PW15/ complainant, Muhammad Younas S.I PW16, Khuda Bukhsh Pw11 and Muhammad Yar ASI PW12 claim themselves to be eyewitnesses of the occurrence. They stated that on 18.3.2000, they were present at Chak No.355 in connection with investigation of case FIR No.217 dated 17.3.2000 u/s 302/324 PPC and received a spy information that Maqsood Ahmad present appellant, Muhammad Aslam and Ghulam Murtaza (since died in police encounter during the occurrence at the spot), Shami and Tariq alias Dona and Umer Hayat accused (since P.O) were present near Pull Hasso-kay within the area of chak No.377 who were required in different cases of heinous nature of murder and dacoity etc. They stated that after receiving above mentioned spy information, they reached at the place of occurrence for the arrest of above mentioned accused. Accused persons were encircled by the police party, whereas, accused persons had hidden themselves in the crop mentioned above. The accused persons started firing upon police party and police party in self defence also made firing upon the accused. They further stated that due to the firing of the accused persons, Muhammad Saeed constable died at the spot. They further stated that after firing, they searched the area and found that Muhammad Aslam holding a Kalashnikov P1 in his right hand with a bag P2 containing 80 bullets P3/1-80, similarly, Ghulam Murtaza holding a Kalashnikov P4 in his hand with a bag P5 containing 70 pellets P6/1-70 were found dead at the spot. It is important to note here that Muhammad Aslam and Ghulam Murtaza

mentioned above were the real brothers inter-se and have no relation with present appellant. No specific role is attributed to present appellant. Further Dr. Muhammad Akram PW1 who conducted post-mortem examination on 18.3.2000 on the dead body of Muhammad Saeed constable observed only single following firearm entry wound:-

“Firearm wound of entry 0.5 cm x 0.5 cm on the left side of front of chest. One cm from mid line. 19-cm from supra-sternal notch.”

12. *Above mentioned single firearm entry wound is attributed to six following accused including present appellant:-*

- i) Muhammad Aslam (since died in police encounter)*
- ii) Ghulam Murtaza alias Murti (since died in police encounter)*
- iii) Shami,*
- iv) Tariq alias Dona.*
- v) Umer Hayat (since P.Os)*
- vi) Maqsood Ahmad (present appellant).*

13. *Prosecution could not produce any evidence that present appellant was proclaimed offender prior to present occurrence, took place on 18.3.2000 except case FIR No.217 registered on 17.3.2000, a day before present occurrence at P.S Jaranwala District Faisalabad.*

14. *We have perused scaled site plan of place of occurrence Exh.PL as well as rough site plan of place of occurrence Exh.PDD where present appellant has not been shown anywhere being accused in all the points of above mentioned site plans. Present appellant has not received any injury during the police encounter. He was arrested in this case on 10.5.2013 by Safarish Hussain Inspector PW7 when he was confined in District Jail Faisalabad as condemned prisoner of case FIR No.217/2000 P.S Jaranwala District Faisalabad. Nothing was recovered from the possession of the present appellant during interrogation. According to the recovery memo Exh.PJ, 5 crime empties of Kalashnikov Exh.P7/1-5 were recovered from the place of Muhammad Aslam accused (died in police encounter during the present occurrence), whereas, 5 empties of Kalashnikov P8/1-5 were recovered from the place of Ghulam Murtaza alias Murti accused (died in police encounter during the occurrence). No crime empty was recovered from any other place during the spot inspection. No overt act is attributed to the present appellant. Prosecution has not produced any*

evidence showing that present appellant had shared common object with his co-accused for the commission of present occurrence. Even otherwise mere presence or association with other members of unlawful assembly alone is not per-se sufficient to hold every one of them criminally liable for the offences committed by the others unless there is sufficient evidence on record to show that each intended to or knew the likelihood of commission of such an offending act which is missing in the present case to the extent of present appellant. Reliance is placed on case K.M Ravi and others vs. State of Karnataka, (2009) 16 SCC 337, in which, it is held as under:-

“In K.M Ravi and others vs. State of Karnataka, (2009) 16 SCC 337, this court observed that mere presence or association with other members alone does not per se be sufficient to hold every one of them criminally liable for the offence committed by the others unless there is sufficient evidence on record to show that each intended to or knew the likelihood of commission of such an offending act.”

15. *In view of the above discussion, we entertain serious doubt in our minds regarding involvement of the present appellant in the present occurrence.*

16. *It is settled principle of law that for giving benefit of doubt, it is not necessary that there should be many circumstances creating doubt. If there is a circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then he would be entitled to its benefit not as a matter of grace or concession, but as a matter of right. Reliance is placed on case “Muhammad Akram vs. the State” (2009 S C M R 230), in which, Hon'ble Supreme Court of Pakistan has observed in para-13 of page 236 as under:-*

“The nutshell of the whole discussion is that the prosecution case is not free from doubt. It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this court in the case of Tariq Pervez v. The State 1995 S C M R 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then he would be entitled to its benefit not as a matter of grace or concession, but as a matter of right.”

17. *For the foregoing reasons, this appeal is allowed. Convictions and sentences of the present appellant u/s 302(b),*

324/353/148/149 PPC, 13/XX/65 A.O and 7(a) Anti-Terrorism Act, 1997 awarded by the learned Trial Court through the impugned judgment are hereby set aside. The appellant Maqsood Ahmad is ordered to be acquitted in case FIR No.87 dated 18.3.2000 under sections 302/324/353/148/149 PPC, 13/XX/65 (A.O) and 7 Anti-Terrorism Act, 1997, P.S Satiana District Faisalabad. Maqsood Ahmad appellant is directed to be released forthwith if not required in any other case.

(Abdul Sami Khan)
Judge

(Sadaqat Ali Khan)
Judge

*Ashfaq**

Approved for reporting.